

22STCV24750 22STCV24750

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-10

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Case Number: 22STCV24750 Hearing Date: September 10, 2026 Dept: 512

Case No.

22STCV24750/23STCV03400

Case Name:

Abhari,

et al. v. Farmers Ins. Exchange, et al.

Hearing Date:

September 10, 2026

Defaulting defendant(s)

Bacon-up

corporation

TENTATIVE RULING

On February 1, 2022,

Plaintiff Zia Abhari ("Plaintiff") filed one of the instant actions against

Defendants Bacon-Up Corporation, Mazyar Yaghoubian, Farmers Insurance Exchange,

Farmers Underwriters Association, and Farmers Group, Inc., and Does 1-1000,

alleging causes of action for Intentional Fraud by Concealment, Negligent

Misrepresentation, and Intentional Misrepresentation.

On July 16, 2026, default

was entered against Bacon-Up Corporation.

Plaintiff seeks to enter judgment against Bacon-Up Corporation in the amount of \$5,602,410.13 for Negligent Misrepresentation.

Plaintiff has submitted some of the requisite documentation and provided some sufficient evidence to support the judgment sought. However, the Court notes the following deficiencies exist in the Default Judgment Packet:

- No Proposed Judgment on JUD-100 Form or a Proposed Judgment meeting the same elements as JUD-100 form was filed
- No Doe Dismissal filed. Further, there are multiple defendants involved in the action(s), and Plaintiff failed to file an application, supported by a showing of grounds, for either separate default judgments or a default against one defendant while the matter proceeds against other defendant(s), if the claims are severable (see Code Civ. Proc., §§ 578, 579). The Court declines to enter more than one judgment in this action.
- The requisite Complaint fails to allege sufficient facts to plead a negligent misrepresentation cause of action against Bacon-Up Corporation
- The evidence in support of the Default Judgment Packet fails to provide adequate explanation and support for the amount of damages requested
- The Court is unable to determine if Plaintiff is seeking punitive damages as part of the default judgment request. If so, Plaintiff has failed to file and serve the requisite notice of punitive damages and the requisite evidence of defendant's wealth

Based on the foregoing, the Default Judgment Packet is DENIED.